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Count(s)	Word(s)	Char(s)	Char(s) (WS)
Section 1	**1347**	**7387**	**8728**
Section 2	**888**	**4621**	**5496**
Section 3	**750**	**4352**	**5097**
Total	**2985**	**16360**	**19321**

Answer-to-Question-_1_

A.

Absent statutory authorization, the legal basis for Presidential action "must be found in some provision of the Constitution" (*Youngstown*, Black). But neither Article II, §1 nor Article II, §3 endow the president with plenary authority to do as he wishes (*Youngstown*).

Congressional silence puts Biden in the "zone of twilight" (*Youngstown*, Jackson). If Congress evinces "an express or implied will" that's "incompatible" with the President's action, Biden is at the "lowest ebb." We lack one helpful piece of information to confirm that Biden acted at the lowest ebb: the text of the statute authorizing the DoE program.

An express enforcement mandate in the statute would make this a straightforward example of a lowest ebb policy and a straightforward violation of doctrine governing executive branch non-enforcement. In *Adams*, the D.C. Circuit implicitly laid out a Constitutional fault-line: blanket non-enforcement is off-limits where a statute mandates enforcement.

But there are other issues for the Biden plan regardless of whether the statute contains an explicit enforcement mandate.

First, he may well be at the lowest ebb either way. Agency enforcement decisions "should be consonant with, rather than contrary to, the congressional policy underlying the statutes the agency is charged with administering" (*Thompson Memo*, citing "lowest ebb" quote). [I'm assuming this is a departmentalist judge who views OLC memos as precedential.] The policy underlying the DoE statute presumably aims to make higher education more accessible, but it also presumably aims to establish a functional loan system where money comes in and goes out. Congress does silly things, so that may be a silly assumption; but the Biden policy likely runs into issues here.

Second, courts may be uneasy about the scope of the "single-shot non-enforcement decision." The *Adams* court and the *Thompson Memo* express Constitutional concerns about blanket policies to cut against *explicit enforcement mandates*. *Thompson* resists the idea that blanket policies cause per se issues, but it and *Adams* generally exhibit a view that executive discretion ought to further *case-by-case* adjudication. And as a pure constitutional matter, the best reading of the text is that "the President's non-enforcement authority extends neither to prospective licensing of prohibited conduct nor to policy-based non-enforcement of federal laws for entire categories of offenders" (Price, 267). Biden's policy arguably prospectively licenses non-repayment and clearly announces "policy-based non-enforcement of federal laws for entire categories of offenders."

There's one other argument that a court is less likely to accept, though. The plaintiffs here may point to *Texas* to argue that "more than non-enforcement," the policy here "would affirmatively confer" the "associated benefits" of a new legal status: federal debt-free. This doesn't hold here. Lawful resident status means you pay taxes but can also access federal benefits. Becoming federal debt-free gives you the bitter not the sweet: no benefits, just more taxes.

B.

Can?

Article II, §4 provides that "[t]he President...shall be removed from Office on Impeachment for, and Conviction of Treason, Bribery, or other high Crimes and Misdemeanors." Article I spells out the division of labor between the House and the Senate for Impeachment. The House "shall have the sole Power of Impeachment" (Art. I, §2, Cl. 4) and the Senate "shall have the sole Power to try all Impeachments (Art. I, §3, Cl. 6).

The scope of Article II, §4 is a political question on which the courts have not spoken. But the words of Article II, §4 have meaning from history, functionalism, and the "gloss which life has written upon them." (*Youngstown*, Frankfurter) The Johnson and Trump examples highlight two issues relevant here: 1) whether "high Crimes and misdemeanors" is limited to legal crimes and 2) whether Congress can impeach the president over a disagreement about the separation of powers.

The House impeached Johnson without a statutory crime, and the House Report for Trump foot-stomped that "high Crimes and Misdemeanors" is "distinct from crimes subject to indictment." Neither President was removed, but partisanship and deal-making (Johnson Reconstruction handshake agreement) got in the way. History and functionalism indicate impeachment isn't limited to legal crimes. Justice Story characterized impeachment as a "remedy" that's "[n]ot but that crimes of a strictly legal character...but that it has a more enlarged operation, and reaches what are aptly termed political offenses."This is the best reading of the phrase. A narrow, technical view of "crimes" means that "so much much conduct" falls outside the bounds of impeachability (Curry).

But the Johnson case shows that Article II, §4 does *not* extend to disagreements over separation of powers. The House impeached Johnson in part for side-stepping a law that limited his removal power. Curry depicts the Johnson acquittal, if nothing else, as "establish[ing] for all time the salubrious constitutional principle that no one should be impeached because he disagrees with the congressional will."

Impeachment can take a while, and there's a risk that the effort would bleed into a next president's term. Impeachment is likely ok post-office, because the Constitution distinguishes between "removal" and "disqualification." This reading also prevents strategic resignation to avoid disqualification.

All that said, "can" is a fraught question for the political branches. This is true for political questions and for acquiesce to the courts (Could Biden ignore *Cooper?*). When rubber meets the road, the political branches "can" do what they want, they just may suffer political consequences.

Should?

The House should impeach and the Senate should convict. None of the branches "can pretend to an exclusive or superior right of settling the boundaries between their respective power" (Federalist 49). Confronted with an unconstitutional usurpation of their respective powers, the President can veto and the Court can strike down(see Jackson and the bank; *Marbury* + *Cooper*). Why should Congress surrender its separation of powers weapon? Impeachment is all the more urgent as a democratic matter given that Congress is the part of government tied to the people.

The risk, of course, is ripping the bandaid off for opportunistic partisan impeachments. But the separation of parties provides some comfort here. Congress will only convulse into action when a President stomps over the constitutional line.

C.

Plenty of people will have standing to sue, and sue they will.

Provided he doesn't run into APA issues (*DACA*), Scott can overhaul DoE policy. The Secretary of Education is neither an inferior officer nor the head of a "multimember expert agency[y] that do[es] not wield substantial executive power," so he can fire her.

The prospective renewal of loan enforcement probably survives. Scott would not need to go through bicameralism and presentment to renew enforcement (*Chadha*). Congress already delegated enforcement authority to the executive branch. Whiplash between administrations is a mere side-effect of broad delegations.

The big problem is likely the enforcing of interest and penalties (herein, I&P enforcement) for those who didn't pay during the Biden administration. Article I, §9,, Cl. 2 provides that "No Bill of Attainder or ex post facto Law shall be passed." The I&P enforcement is ex post facto. The question is whether the Ex Post Facto clause applies to administrative action.

On the one hand, Article I envisages restrictions on *Congress* not the DoE*,* because in 1787 Congress exercised all legislative power (*Post Roads*). The underlying law here is not ex post facto, just the enforcement.

On the other hand, the DoE flip here looks like an exercise of legislative power on which Article I has some sway. It "had the purpose and effect of altering the legal rights, duties, and relations of persons" in private life (*Chadha*). The Janus-faced invocation of *Chadha* h e r e - - o k for B&P, but "legislative"-is admittedly incoherent, but no more so than the rest of the Court's administrative law jurisprudence. The inference that the Ex Post Facto clause would apply here is buttressed by the the structure of the Constitution. Section 10 extends the ex post facto prohibition to the states. The framers envisioned the executive branch as the "weaker" of the federal political branches (Madison). The framers were insufficiently prescient to predict the explosion of the administrative state, but in no world does it make sense to imagine that they would foreclose ex post facto laws from the states and Congress, but not the "weaker" executive.

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Answer-to-Question-_2__

Assuming all the plaintiffs have suffered an injury in fact, they have standing to sue (*Levitt*).

On the merits of the various challenges, as an overriding presumption, she should heed the Chief Justice's caution: "if a statute has two possible meanings, one of which violates the Constitution, courts should adopt the meaning that does not do so" (*NFIB*).

This counsels in favor of three things. First, she should address the claims individually. Second, she should ignore the government's label of the measure as a tax (*NFIB*). Third, she should allow the government to argue different theories for the different claims.(*NFIB*, supporting the general proposition that the gov't can try different theories).

Post Office

She should uphold the post office provision as a valid exercise of a power "implicit" in Congress's authority "[t]o establish Post Offices and post Roads." (Article I, §8). The Necessary and Proper Clause lets Congress enact laws "incidental to" an enumerated power, "and conducive to its beneficial exercise" (*McCulloch*). The Court has "upheld laws that are 'convenient or useful' or 'conducive' to the authority's beneficial exercise" (*NFIB*). It's an easy care here that this is ok.

But Congress can't use the N&P clause to trojan horse "great substantive and independent power[s]" *McCulloch*. The general test is whether the incidental power is "narrow in scope" (*NFIB*) or, instead, if it

upsets the "essential postulates" of federalism (*Printz*). A 500-foot radius does make a big difference in urban settings, but the rule still serves a legitimate end and doesn't overly offend the separation of powers. The "great and substantial" test is "short on substance" about the exact place to draw the line, and the judge should not draw it here (*NFIB*, dissent).

For anything that's not a tax power, it doesn't matter which agency collects and enforces the rule.

Federal Courts

She should uphold this provision as a valid exercise of Congress's "implicit power" to "constitute Tribunals inferior to the supreme Court." (Article I, §8) A similar analysis as above applies here, perhaps with greater force given the security concerns associated with some criminal trials.

Article I, §8 doesn't explicitly say anything about the Supreme Court. But, among other things, the Supreme Court is in DC not a state.

Train Stations

It's shakier, but she should uphold this provision as a valid exercise of Congressional power under the Commerce Clause

There's a strong argument that a train station is a "channel or instrumentality of interstate commerce" (*Lopez*). Train stations facilitate interstate commerce, as goods and people travel through them. The counter is that the *train* is an instrumentality not the station.

There's a slightly weaker theory is that this is a valid commerce clause regulation under *Raich*. In addition to "channels and instrumentalities" of interstate commerce, Congress can regulate local activities that "substantially affect" interstate commerce provided that the regulation targets a "class of activities" that affect interstate commerce (*Raich*). A charitable judge could construe the class here as "carrying guns while approaching train stations." It's true that some gun-carriers approaching train stations won't affect interstate commerce, but many will. This reading doesn't go so far as to reduce *Lopez* to a "drafting guide," and the judge should accept it (*Raich*, O'Connor).

State Court

Congress can commandeer state courts to enforce federal law, but they can't ensconce the physical space of state courts in federal regulation absent a separate Constitutional hook.

That hook is the tax power. But this tax runs afoul of the implicit limits on the tax power; it's closer

to *Bailey* than to *NFIB*. The judge should find it unconstitutional.

The Court evaluates whether a tax is actually an unconstitutional penalty by taking a "functional approach" (*NFIB*), focusing in particular on three factors.

First, the Court looks to the amount of the tax. Notwithstanding *Veazie Bank*, there comes some time where a tax implies such an "exceedingly heavy burden" that it looks like a penalty. The inconsistency between *Veazie Bank* and *Bailey* makes this a hard factor to evaluate, but the judge should find this tax to be too expensive. $25,000 for a single infraction makes this akin to the penalty in *Bailey*. The NFIB tax survived in part because it was relatively low. Not so here.

Second, the Court looks to whether a so-called taxes includes a scienter requirement. (*NFIB*, *Bailey*). Here, the "knowingly" puts this in that bucket. This mirrors to a great extent the scienter requirement that the court took issue with in *Bailey*.

Third, the Court looks to which agency collects the tax. The individual mandate survived in part because the IRS collected it, whereas the child labor tax got dinged as a penalty in part because the Department of Labor Collected it. DOJ is not responsible for "collecting revenue" so it fails here (*NFIB*).

The judge should hold the Gun Free Sensitive Places Tax an unconstitutional penalty.

If for some reason the judge thinks that it doesn't violate the implicit limits on the tax power, it passes muster under the explicit limits. *Hylton* suggested a tax is either direct or indirect (*See also*, *NFIB*). This has none of the features of a direct tax. It's set up in a uniform way, so it satisfies Art I, §8, cl. 1.

School

Same as State Courts, except replace DOJ with the Department of Education. It's also not responsible for collecting revenue.

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Answer-to-Question-_3__

Discussion of Amendment

In 1789, James Madison introduced an amendment that could've saved some doctrinal headaches. He proposed inserting between Article VI and Article VII a provision that "the Legislative Department shall never exercise powers vested in the Executive or Judicial nor the Executive exercise the powers vested in the Legislative or the Judicial" (826).

I'd pick up where he left off, but end up in a dramatically different place:

**"Congress can pass laws that permit executive branch agencies to exercise the power to engage in substantive rulemaking, to undertake agency adjudication, to initiate litigation in court, to provide informal guidance, to undertake initiation investigations armed with subpoena power. In granting any of the aforementioned conferrals of authority, Congress must articulate an intelligible principle to which the body authorized the exercise the authority is directed to conform.

Congress may not, in the same statutes where it gives these powers to executive branch agencies, reserve the power to review determinations made by the agencies.

The President may remove without cause any executive branch agency officer, except those on multimember expert agencies with staggered appointment schedules."**

When the court talks about "legislative power," it talks out of both sides of its mouth-and maybe also a nostril. *Chadha*, *Seila Law*, *Gundy* all refer to "legislative" power, but do so in inconsistent and unclear ways. The trio are symptoms of the occasional awkwardness of trying to jam the square peg of a modern bureaucracy that serves 330 million people into the round hole of an 18th century vision of governance where the most significant delegation question was the curvature of postal routes. The jurisprudence in this arena is also a victim of Constitutional path dependence. Bad decisions driven by idiosyncratic beefs or poor writing warp how the Court treats pressing questions of governance. My amendment offers some fixes.

First, the amendment beats some coherence into the removal, delegation, and bicameralism and presentment doctrine. It's a siphon on constitutional legitimacy and an impediment on clear judging to force courts to use the same words to mean inconsistent things in such closely-related doctrines.

Second, my amendment refreshes the constitutional lexicon to concrete terms relevant in 2023. It dispenses with "handwaiving and obfuscating phrases such as 'quasi-legislative' and 'quasi-judicial'," (Seila Law, Thomas) along with "legislative," "executive," and "judicial." This reflects the reality that administrative agencies do things that don't neatly fit into the traditional understanding of any one branch. My clearer language spells out what administrative agencies actually do. Non-delegation suffered from its mushy standard-like quality (*Clinton*, Scalia). It's useful when courts supply clear lines (*Dole*), my enumerated list does that in clause one.

Third, the amendment frees courts from historical debates about non-delegation. Original meaning offers an invaluable lens for constitutional interpretation. But my amendment would untether administrative law cases from fights about "the wisdom of the Framers" and redirect attention to what governance means today (*Gundy*, Kagan).

Finally, in so doing, it protects the continued operation of the federal government. Non-delegation is an awkward doctrine where one side likely has the better argument on text, structure, and (maybe) history; but resoundingly has the worse argument on pragmatics. If non-delegation is unconstitutional, "then most of Government is unconstitutional." Today, the Court may well have a majority to start enforcing non-delegation (*See Gundy*, Alito). Putting that doctrine to bed saves federal government from the earth-shattering consequences that renewed enforcement would bring. People depend on the government for a range of services and protections; a sclerotic Congress depends on delegation to accomplish those important goals.

Ambiguities

My amendment doesn't resolve familiar fights over the "intelligible principle" doctrine. However, I prefer this approach because it provides a way for Congress to give authority to agencies with less worry they'll overstep their subject-matter competence.

The first clause introduces another familiar issue: expressio unius. Can Congress delegate some other types of unlisted authority to executive branch agencies? Some will argue yes. Others will urge the Court to reason by analogy: is the new delegated power close to one of the explicitly listed ones? I prefer my formulation over one that has a catch-all ("or other similar...") because it's good to articulate some textual baseline.

The thorniest question will be about "executive branch agency." The sharpest fights will be about multimember agencies with staggered appointment structures. These agencies are designed to be insulated from some of the partisanship brought by changes in administration, thus some may argue they don't count as "executive branch agencies." However, clause three aims to pre-empt these disputes.